

4.

CASE #	CASE NAME	HEARING NAME
CVRI2503273	QUIROZ vs JUZHONG TRUCKING INC.	MOTION TO STRIKE 2ND AMENDED COMPLAINT

Tentative Ruling:

Moving party: Defs, Juzhong Trucking, Inc. and Juzhong Qiu
Represented by: Everett Dorey, LLP

Responding party: Plf, Janie Quiroz
Represented by: Walter Clark Legal Group, APC

This is a wrongful death action. Plaintiff, Janie Quiroz, alleges she is the mother of Decedent, Adrian G. Quiroz. She alleges that on 1/17/25, Defendant, Juzhong Qiu was driving a 2017 freightliner tractor trailer for Defendant, Juzhong Trucking, Inc., an interstate trucking company, which he had illegally parked on E. Ellis Avenue in Perris, with the engine off, and no lights, flares, cones, or other warning devices. The vehicle was also protruding into the designated traffic lane near a “No Stopping Any Time” sign. Decedent was driving on E. Ellis Avenue, which had limited lighting when he collided with Defendant’s tractor-trailer and was killed.

Plaintiff filed her operative Second Amended Complaint (SAC) on 4/28/26 alleging eleven causes of action: 1) general negligence (truck driver); 2) negligence per se (truck driver); 3) general negligence (trucking company); 4) negligence per se (trucking company); 5) negligent hiring, retention, training, and supervision; 6) negligent entrustment; 7) dangerous condition of public property; 8) general negligence (freight broker/logistics coordinator); 9) general negligence (supplier); 10) general negligence (Home Depot USA, Inc.); and 11) wrongful death.

Defendants Juzhong Trucking, Inc. and Juzhong Qiu, bring this motion to strike punitive damages from Plaintiff’s SAC on the ground that it fails to allege specific facts of oppression, fraud, or malice and fails to allege advance knowledge, authorization, or ratification by an officer, director, or managing agent of a corporate defendant. (CCP § 435, § 436; Civil Code § 3294(b).)

Plaintiff, Janie Quiroz, opposes the motion arguing that there is no heightened pleading requirement for malice or oppression (unlike fraud) and the allegations are sufficient for authorization/ratification; that the malicious conduct includes failing to comply with applicable statutes (e.g., parking in a “No Stopping Any Time” area; no warning devices; protruding into traffic lane); and, that Qiu was an officer of Juzhong Trucking and therefore, ratified Qiu’s own misconduct.

The Reply asserts that the alleged conduct was negligent but, does not rise to the level of malice or oppression; that Plaintiff’s Opposition merely repeats the allegations in the SAC; that contrary to the Opposition, Plaintiff is required to plead “ultimate facts” to support oppression, fraud, or malice – conclusory allegations are

insufficient; and, that Plaintiff's "ratification" argument is circular as it is his own conduct at issue.

Analysis:

MOTION TO STRIKE

CCP §435 and §436 authorize a motion to strike, and permit the court to strike out irrelevant, false or improper matter, or "any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (CCP §436.)

To set forth a claim for punitive damages, Plaintiff must allege ultimate facts showing oppression, fraud or malice. (Civil Code §3294.) Mere negligence, even gross negligence is not sufficient to justify an award of punitive damages. (*Ebaugh v. Rabkin* (1972) 22 Cal.App.3d 891, 894-895; *Moody v. McDonald* (1854) 4 Cal. 297, 299.) The current definitions of "malice" and "oppression" were changed by the 1987 amendments to Civil Code §3294, to incorporate "despicable conduct." The amendments narrowed the definitions so that punitive damages will only be awarded to punish conduct that is so "vile, base, contemptible, miserable, wretched, or loathsome that it would be looked down on and despised by ordinary decent people." (*Mock v. Michigan Millers Mutual Ins. Co.* (1992) 4 Cal.App.4th 306, 331.)

Generally, claims for punitive damages must be pleaded with particularity as to the facts constituting the alleged egregious conduct. (*G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29.) However, the court may read the complaint as a whole so that conclusory allegations may be sufficient when read in context with the facts alleged as to the defendant's wrongful conduct. (*Perkins v. Superior Court (General Tel. Directory Co.)* (1981) 117 Cal.App.3d 1, 6-7.)

In addition, "[w]ith respect to a corporate employer, the advance knowledge of conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (CCP § 3294(b).)

Here, all of the causes of action in the SAC are based on negligence, and nothing more. It is alleged that Qiu parked the tractor-trailer illegally on the street at night with no lights or warning devices, and protruding into the traffic lane near a "No Stopping Any Time" sign. (Compl. ¶¶ 25-26.) It is alleged he had a duty not to operate the vehicle negligently and breached that duty by this conduct. (*Id.* ¶¶ 36-37, 40-46.) The Complaint also alleges numerous statutory violations. (*Id.* ¶¶ 48-57.) Qiu's conduct is repeatedly described as "negligent". (*Id.* ¶¶ 58-63.) There are no *factual* allegations of malicious or despicable conduct. All the allegations as to punitive damages are conclusory. (*Id.* ¶¶ 88, 101, 230, 244, 245, 248, 249, 250-253.)

While the 54-page SAC contains numerous allegations in an attempt to set forth factual allegations of oppression or malice, it fails to allege ultimate facts to rise to the level required to support a claim for punitive damages at the pleading stage. There are

no allegations that Qiu was intoxicated or somehow impaired, or that he was even *driving* (as he was parked on the side of the public roadway.) Reading the SAC as a whole, in context with all of the factual allegations, nothing more than negligence has been alleged.

Summary:

Grant the motion to strike punitive damages *without* leave to amend.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2602054	DURAN vs KIA AMERICA, INC.	MOTION FOR PROTECTIVE ORDER

Tentative Ruling:

Moving party: Defendant Kia America, Inc.
Responding party: Plaintiffs Heather Duran and Juan Guzman Vazquez

This is a lemon law action. On August 4, 2025, Plaintiffs Heather Duran and Juan Guzman Vazquez (collectively, “Plaintiffs”) purchased a 2025 Kia EV6 (the “Vehicle”). (Compl. ¶ 6.) The Vehicle was delivered to Plaintiffs with serious defects and nonconformities to warranty and developed other serious defects and nonconformities to warranty including, but not limited to, defects relating to the Powertrain, including the Transmission and the Axle systems. (*Id.* at ¶ 9.)

On April 2, 2026, Plaintiffs filed their Complaint against Defendant Kia America, Inc. (“Kia”), asserting three causes of action under the Song-Beverly Act: (1) breach of express warranty; (2) breach of implied warranty; and (3) violation of section 1793.2(b).

This case is governed by the Song-Beverly Act disclosure framework enacted in 2024 and operative as of January 1, 2025. CCP §§ 871.20 et seq. establish expedited procedures for lemon law actions. Central to this framework is section 871.26, which mandates automatic initial disclosures within sixty days of the answer. Subdivision (b) provides:

Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents as described in this section.

(CCP § 871.26(b).) Subdivision (h) enumerates 17 categories of documents the manufacturer must produce, including two categories at the heart of Kia’s motion:

(12) Warranty policies and procedure manuals.

[and]